

ASSOCIATION RULES

of

KLAIRE PACKS

An unincorporated not-for-profit association

ABN 28 968 180 521

24 August 2026

These Rules are the governing document of Klaire Packs (the “Association”). They form a contract among the members of the Association and set out its purpose and how it is run. The Association is an unincorporated association and not a separate legal entity.

1. Name

1. The name of the Association is Klaire Packs (the “Association”).

2. Purpose

2. The purpose of the Association is to support the wellbeing and recovery of people receiving care at rehabilitation and recovery clinics by preparing and providing thoughtfully assembled care packs (“packs”) to those clinics, and by raising funds and awareness to sustain and grow this work.
3. In pursuit of its purpose, the Association may, among other things:
 - design, assemble and distribute care packs to rehabilitation and recovery clinics and comparable care settings;
 - invite clinics to register with the Association so they can request packs at no cost to the clinic or the people in their care;
 - receive donations, whether one-off or recurring, and accept purchases made on behalf of a nominated clinic;
 - accept donations of goods and products from businesses and other supporters for inclusion in the packs;
 - engage volunteers and supporters, and collaborate with individuals, organisations and suppliers who share its purpose;
 - hold and apply funds and property to carry out its purpose; and
 - do all other lawful things that are incidental or conducive to its purpose.

3. Not-for-profit character

4. The Association operates on a not-for-profit basis. Its income and property must be applied solely towards its purpose.
5. No part of the Association’s income or property may be paid or transferred, directly or indirectly, to any member for their private benefit. This does not prevent the reasonable reimbursement of a member for out-of-pocket expenses properly incurred on behalf of the Association, or payment in

good faith for goods or services actually provided to the Association at no more than a reasonable rate.

4. Powers

6. To carry out its purpose, the Association has power to receive money and property; to open and operate accounts with a bank or other financial institution; to hold, manage and apply funds and property; to enter into agreements and arrangements; and to do all things reasonably necessary or incidental to its purpose. These powers are exercised by the Committee on behalf of the Association.

5. Membership

7. Membership of the Association is open to any person who supports its purpose and is willing to abide by these Rules.
8. The founding members of the Association are the persons named as Committee members in the schedule to these Rules.
9. A person becomes a member on being admitted by the Committee, and remains a member until they resign in writing, or their membership is ended by the Committee for conduct inconsistent with the Association's purpose, after giving the member a reasonable opportunity to be heard.
10. Membership is not transferable and ends on the member's death or resignation.

6. The Committee

11. The affairs of the Association are managed by a committee (the "Committee") made up of its members.
12. The Committee has at least one member. The Association will endeavour to maintain a Committee of two or more members to support sound decision-making and oversight.
13. The Committee holds the following offices, one or more of which may be held by the same person where the Committee has fewer than three members:
 - Chairperson (also referred to as Coordinator) — leads the Association and chairs its meetings;
 - Secretary — keeps records of meetings and decisions and handles correspondence; and
 - Treasurer — keeps the financial records and oversees the Association's funds.
14. The Committee may appoint a Public Officer to act as the Association's contact for the Australian Taxation Office and other authorities. The Public Officer may also hold another office.
15. A Committee member holds office until they resign in writing or are removed by a resolution of the members. The Committee may fill a vacancy at any time.

7. Decision-making and meetings

16. The Committee meets as often as it decides is necessary, and may meet in person or by any means of communication that allows members to participate.
17. Decisions of the Committee are made by consensus where possible and, failing consensus, by a majority of Committee members present. Where only one Committee member holds office, that member may make decisions alone.

18. A record of each meeting and of significant decisions is kept by the Secretary.
19. The Association holds a general meeting of members at least once each financial year to review its activities and finances.

8. Finances

20. The Association's financial year runs from 1 July to 30 June.
21. The Committee is responsible for the proper management of the Association's funds. All money received is banked to an account in the name of the Association, and proper records of income and expenditure are kept.
22. The Committee decides who is authorised to operate the Association's bank accounts and the manner in which those accounts are operated, including any requirement for more than one signatory. Cheques, electronic payments and withdrawals are made only as authorised by the Committee.
23. Funds may be applied only towards the Association's purpose and the reasonable costs of its operation.

9. Property held on behalf of the Association

24. Because the Association is not a separate legal entity, any property or funds of the Association are held by one or more Committee members on trust for the Association and its purpose, and must be dealt with only in accordance with these Rules and the decisions of the Committee.

10. Changing these Rules

25. These Rules may be amended by a resolution passed by a majority of the members of the Association at a meeting called for that purpose. Any amendment must be consistent with the Association's not-for-profit character and purpose.

11. Winding up and distribution of surplus

26. The Association may be wound up by a resolution of a majority of its members.
27. If the Association is wound up, or its registration or endorsement for any tax concession is revoked, any surplus assets remaining after its debts and liabilities are satisfied must not be paid or distributed to members. Instead, they must be given or transferred to one or more not-for-profit organisations that have purposes similar to the Association's, as the members decide at or before the winding up.

APPENDIX A**Gift Acceptance Note**

This note guides which donated goods and products Klaire Packs will and will not accept for inclusion in its packs. It is an internal policy of the Committee, not part of the Association Rules, and may be updated by the Committee as needed. Its purpose is to keep every pack safe, appropriate and welcome for people receiving care at rehabilitation and recovery clinics.

Guiding principle

Every item in a pack should support a person's comfort, dignity and recovery. Where there is any doubt about an item's suitability, the Committee will not include it. The wellbeing of the people the packs are made for comes before the value or convenience of any donation.

Items we welcome

- New, unused items in their original packaging.
- Comfort and self-care items appropriate to a recovery setting (for example, toiletries free of alcohol, soft goods, stationery, books, and similar).
- Items with a clear shelf life remaining, where perishable.
- Items suitable for a general adult audience and appropriate across a range of backgrounds and beliefs.

Items we do not accept

- Anything containing alcohol, including toiletries and products where alcohol is a listed ingredient, and anything relating to alcohol, tobacco, vaping or other drugs.
- Prescription or over-the-counter medicines, supplements, vitamins, or any therapeutic goods.
- Used, opened, expired, damaged or unlabelled items.
- Food or drink requiring refrigeration, or items with allergen risks that cannot be clearly labelled.
- Weapons, sharps, or anything that could be used to cause harm to self or others.
- Promotional material, advertising, or branding that is not agreed with the Committee, and anything of a political, religious or adult nature.
- Cash placed inside packs (monetary donations are handled separately through the Association's accounts).

How donations are handled

The Committee, or a person it authorises, checks all donated goods against this note before they are included in a pack. Donated items that cannot be accepted will, where practical, be returned to the donor or passed to another suitable not-for-profit, and will otherwise be responsibly disposed of. Klaire Packs may decline any donation at its discretion, and thanks all supporters for helping it care for people in recovery.